

26NWCV00825 26NWCV00825

County: los-angeles

Division: Civil Law and Motion

Department: R

Hearing date: 2026-09-22

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DIGITAL VERNON

5, L.P. V. VUTHY DUKE AUEYONG, ET AL.

CASE NO.: 26NWCV00825

HEARING: Tuesday, September 22, 2026, at 9:30 AM

Plaintiff Digital Vernon 5, L.P.'s Motion to Amend Court's

Judgment for Possession is GRANTED.

The Judgment is amended to include a monetary award of \$64,710.16,

entered jointly and severally against both Defendants.

Moving Party to give notice.

Background

On March 5, 2026, Plaintiff Digital Vernon 5, L.P. ("Plaintiff" or

"Digital") filed the instant commercial unlawful detainer action against

Defendants Vuthy Duke Aueyong ("Aueyong"), Bulksavers Inc. ("Bulksavers")

(collectively, "Defendants") and Does 1 through 10.

On March 27, 2026, default was entered against Defendants.

On August 24, 2026, Plaintiff filed the instant Motion to Amend Court's

Judgment for Possession ("Motion"). No

opposition has been filed.

Legal Standard

Pursuant to Code of Civil Procedure section 1169:

If, at the time appointed, any defendant

served with a summons does not appear and defend, the clerk, upon written

application of the plaintiff and proof of the service of summons and complaint,

shall enter the default of any defendant so served, and, if requested by the

plaintiff, immediately shall enter judgment for restitution of the premises and

shall issue a writ of execution thereon. The application for default judgment and the

default judgment shall include a place to indicate that the judgment includes

tenants, subtenants, if any, named claimants, if any, and any other occupants

of the premises. Thereafter, the

plaintiff may apply to the court for any other relief demanded in the

complaint, including the costs, against the defendant, or defendants, or

against one or more of the defendants.

Section 1174, subdivision (b) requires assessment of damages occasioned

by the unlawful detainer and determination of rent due where the action is

based on nonpayment of rent.

Motion to Amend Judgment

Plaintiff moves to amend the judgment granting Plaintiff possession

against Defendants Aueyong and Bulksavers to add a monetary award of \$64,710.16.

Plaintiff invokes Code of Civil Procedure sections 1169, 1174, 1032,

1033.5, and 1034.5, Rules of Court 3.1112 and 3.1113, applicable local rules,

the parties' written lease agreement, and the Court's inherent and statutory authority

to award relief demanded in the complaint following a default judgment for

possession in an unlawful detainer action.

Plaintiff seeks to add to the judgment: (1) past due rent and late

charges totaling \$38,971.80; (2) holdover damages of \$14,930.54; (3)

prejudgment interest of \$2,855.12 through the hearing date; and (4) recoverable

costs and attorneys' fees totaling \$7,952.60; less a \$4,340 security deposit;

for a net \$64,710.16, to be entered against both Defendants, jointly and

severally.

The motion asserts that Defendants are not entitled to notice after

default; The record supports proceeding without additional notice.

1.

Past Due Rent and Late Charges

The Rent Collection Report shows missed base rent of \$35,428.96 for

August 2025 through February 2026 at \$5,061.28 per month. Lease §13.4 imposes a one-time 10% late charge

if rent is not received within five days; § 4.1 defines "Rent" to include all

monetary obligations other than the security deposit; late charges total

\$3,542.84. The record supports

\$38,971.80.

2.

Holdover Damages

Defendants surrendered possession on April 27, 2026, after the notice to

pay rent or quit expired on February 26, 2026, resulting in 59 days of holdover

from February 27 to April 27, 2026. Lease

§ 26 sets holdover rent at 150% of the prior base rent; with base rent of

\$5,061.28, the daily holdover rate is \$253.06, yielding \$14,930.54 for 59

days. This amount is substantiated.

3.

Prejudgment Interest

Lease §13.5 provides 10% per annum interest on monetary payments (other

than late charges) beginning the 31st day after due; Plaintiff's spreadsheet

calculates \$2,855.12 through the September 22, 2026, hearing date. The showing is adequate as to method and

amount through the stated date.

4.

Costs and Attorneys' Fees

Plaintiff seeks

\$7,952.60 consisting of \$278.10 in costs (filing and reservation fees) and

\$7,674.60 in attorneys' fees, supported by invoices and a declaration

addressing work performed, rates, and reasonableness. Lease §31 contains a prevailing-party fee

clause providing for reasonable fees fully reimbursing fees reasonably

incurred. The documentation sufficiently

supports the requested amounts.

5.

Security Deposit Offset

The tenant estoppel

identifies a \$4,340 security deposit, which Plaintiff credits against the total

recovery.

6.

Total Amount

The requested amended judgment components net to \$64,710.16 and

Plaintiff asks that it be entered jointly and severally against both defendants.

The amounts are supported by sworn

declarations and exhibits.

Plaintiff's Motion is GRANTED.

Conclusion

Plaintiff Digital Vernon 5, L.P.'s Motion to Amend Court's Judgment for

Possession is GRANTED. The

judgment is amended to include a monetary award of \$64,710.16, entered jointly

and severally against both Defendants.